

SENATE No. 554

The Commonwealth of Massachusetts

PRESENTED BY:

Cynthia Stone Creem

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to reduce plastic packaging waste.

PETITION OF:

NAME:

Cynthia Stone Creem

DISTRICT/ADDRESS:

Norfolk and Middlesex

SENATE No. 554

By Ms. Creem, a petition (accompanied by bill, Senate, No. 554) of Cynthia Stone Creem for legislation to establish the Sustainable Food Service Ware Act. Environment and Natural Resources.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 450 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to reduce plastic packaging waste.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. The General Laws are hereby amended by inserting after chapter 21O the
2 following chapter:-

3 CHAPTER 21P

4 MASSACHUSETTS PLASTICS REDUCTION ACT

5 Section 1. As used in this chapter, the following words shall have the following meanings
6 unless the context clearly requires otherwise:

7 “Customer”, a person who purchases or otherwise receives goods, services or materials
8 from a business, organization, corporation or other entity.

9 “Department”, the department of environmental protection.

10 “Disposable”, designed to be discarded after a single or limited number of uses and not
11 designed or manufactured for long-term multiple reuse.

12 “Food service ware”, disposable products used for serving or transporting foods or
13 beverages for human consumption, including, but not limited to, plates, bowls, trays, cups,
14 cartons, hinged or lidded containers, straws, stirrers, cup spill plugs, cup sleeves, condiments
15 containers, utensils, cocktail sticks or picks, toothpicks, film wrap and napkins; provided,
16 however, that “food service ware” shall not include detachable lids for beverage cups or food
17 containers, coolers or ice chests.

18 Section 2. (a) Except as provided in subsection (b), a retailer or charging entity shall not
19 provide a customer with disposable food service ware unless requested by the customer.

20 (b) A retailer or charging entity may make disposable food service ware available to a
21 customer for self-service to allow for non-bundled, single-use food service ware to be obtained.

22 Section 3. The department shall promulgate regulations to implement and enforce this
23 chapter.

24 SECTION 2. Section 3 of chapter 21P of the General Laws, as appearing in section 1, is
25 hereby amended by inserting the following subsection:-

26 (c) No food service ware provided consistent with this section shall be made from black
27 plastic; provided, however, that the provisions of this subsection shall not apply to prepared food
28 packaged outside of the commonwealth.

29 SECTION 3. Section 2 shall take effect on January 1, 2027.